

## SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

## BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 13, 2022. The complaint is directed against NATURGESTYGAS, S.L. with NIF B88390661 (hereinafter, NATURGESTY or the complained party). The reasons for the complaint are as follows:

The complainant states that after receiving a phone call from a company identifying itself as Naturgy, she was informed that an obligatory gas inspection was due, and a visit was made to her home on June 27, 2022, to carry it out.

On July 1 and July 5, 2022, she received two charges in her bank account from the complained party, a company with which she has no contract. After contacting her gas supplier, they confirmed that no inspection had been carried out and that they have no relationship with the complained party.

Along with the complaint, she submitted a police report dated July 5, 2022, bank receipts issued by the complained entity, and a copy of the sticker placed on her heater.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to NATURGESTY for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 5, 2022, as recorded in the certificate in the file.

However, no response has been received to this forwarding letter.

THIRD: On October 13, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On March 24, 2023, in response to the request for information regarding the origin of the complainant's personal data, NATURGESTY replied that:

“The personal data of the complainant relating to her full name, address, and phone number were obtained from the database purchased from the company Infobel, whose tax details are KAPITAL SA, \*\*\*ADDRESS.1.

This database was purchased in 2016, with the aforementioned company providing a CD-ROM with an installable program that included a database with phone numbers, addresses, and names of individuals and companies in Spain.”

“Naturgestygas S.L. uses as a usual practice for customer acquisition the purchase of databases from companies specialized in these services. For this purpose, it only contracts with suppliers that offer sufficient guarantees regarding compliance with current data protection legislation, presuming that the data obtained by these companies has a lawful origin based on user consent.”

“... there is no invoice justifying the purchase of this program because it was destroyed, as the four-year statute of limitations provided for in Article 29.2, letter e) of Law 58/2003, of December 17,

General Tax Law and 165. One of Law 37/1992 has elapsed...”

“The data relating to the bank account number was obtained directly from the complainant when she signed the SEPA document (See Annex IV – Page 5) during the visit received by our technician. Additionally, the quality control of the service provided, included in this same annex, was signed and filled out in handwriting by the complainant's husband, in which, as can be seen, she was informed about the causes for contract termination, as well as her rights regarding data protection.”

“The data relating to the complainant's National Identity Document was obtained directly from her when filling out the maintenance contract along with the general conditions of the service provided and the record of the action carried out, whose reference identification number is 1192 (See Annex IV – Pages 1 to 4). Both documents are duly signed by the complainant.”

FIFTH: According to the report collected from the AXESOR tool, the entity NATURGESTYGAS, S.L. is a limited company established in 2019, with a share capital of 3,000 euros; however, since its incorporation, it has not filed annual accounts with the Mercantile Registry.

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SIXTH: On October 4, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: After the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the accused party submitted a written statement of allegations requesting to be exempted from all liability arising from the initiation agreement of the sanctioning procedure.

In its allegations, in summary, the accused party argues:

1.- In its first allegation and for the purpose of determining the applicable legislation that justifies and regulates commercial telephone communications, it claims that the law in force at the time of the events was the recently repealed Law 9/2014, of May 9, General Telecommunications Law, the events occurred on June 14, 2022, with Law 11/2022, of June 28, General Telecommunications Law, coming into force on June 29, although its Sixth Final Provision states: “2. The right of final users not to receive unwanted calls for commercial communication purposes as contemplated in Article 66.1.b) shall come into force within one year from the publication of this law in the ‘Official State Gazette’. Therefore, it considers that the justification for the legal basis is found in Article 48.1, letter b) of Law 9/2014.

2.- The accused entity also refers to the origin or source of the complainant's data, highlighting that the complainant's telephone number was obtained from the purchase of a database from the company Infobel. NATURGESTY asserts that for the complainant to be listed in the telephone directories, she must have expressed her consent for this, being able to receive such commercial calls based on her own consent and the legitimate interest of the data controller as provided in Article 6.1 of the GDPR.

3.- Finally, it refers to the two aggravating circumstances taken into account in the assessment of the sanction:

- The intentionality or negligence in the infringement, regarding which it considers that it has acted with the legally required diligence, as it consulted whether the client was included in advertising exclusion systems or not.

- The link of the infringer's activity with the processing of personal data, considering that they acted within the current legality, having adapted to the new regulations established by Law 11/2022, of June 28, General Telecommunications Law.

However, the allegations presented were dismissed.

EIGHTH: On August 13, 2024, a resolution proposal was made, proposing to sanction NATURGESTYGAS, S.L., with NIF B88390661, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €10,000 (TEN THOUSAND EUROS).

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NINTH: After the resolution proposal was notified in accordance with the rules established in the LPACAP, the accused party submitted a written statement of allegations within the legally established timeframe.

In its allegations, in summary, the accused party argues:

- In its first allegation, they state that the assertion made by the Spanish Agency for Data Protection “However, it is important to note that, at no time has the accused entity accredited or provided any document proving that the data was obtained from a database purchased from the company Infobel” is incorrect, providing again Annex I – Photograph of the purchased program and Annex II – Image of the Infobel program with the client's data.
  - In its second allegation, it refers to the fact that the commercial call (subject of this complaint) was not made until 2022, with the current Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights already in force, so to determine whether the commercial call was made in accordance with legal provisions, Law 11/2022, of June 28, General Telecommunications Law, in force at the time of the communication, must be applied.
  - Finally, in its third allegation, it highlights the substantial regulatory change that has occurred, as it has moved from a system in which the existence of a legitimate interest of the controller was presumed, allowing them to make the calls, recognizing exclusively a right of opposition, to a new system in which the right of affected individuals not to receive unwanted calls for commercial communication purposes is recognized, unless there is prior consent from the user to receive such commercial communications or unless the controller proves the existence of a legitimate interest that does not prevail over the interests or fundamental rights and freedoms of the data subject, in application of the aforementioned Law 11/2022, of June 28, General Telecommunications Law.
- From the actions taken in the present procedure and from the documentation in the file, the following has been established:

#### PROVEN FACTS

FIRST: It is recorded in the file that a complaint was filed with the National Police with report number \*\*\*REPORT.1, in which it is stated that, after the charge of the receipt, the accused party confirms that it belongs to the entity NATURGESTY GAS S.L. That the receipt was issued for a supposed contracting of services and maintenance and that the complainant denies having contracted any type of service with this company, not understanding how they had access to her data and her bank account.

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SECOND: The file contains a statement from the entity being claimed against, as follows:

“The personal data of the claimant regarding their full name, address, and phone number, has been obtained from the database purchased from the company Infobel, whose tax details are KAPITAL SA, \*\*\*ADDRESS.1.

This database was purchased in 2016, with the mentioned company providing a CD-ROM with an installable program that included a database with telephone numbers, addresses, and names of individuals and companies in Spain.”

“... there is no invoice justifying the purchase of this program because it was destroyed, as the 4-year statute of limitations provided for in Article 29.2, letter e) of Law 58/2003, of December 17, General Tax Law and 165. One of Law 37/1992 had elapsed...”

#### LEGAL GROUNDS

I

## Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

## II

### Allegations to the proposed resolution

In response to the allegations presented by the entity being claimed against, the following should be noted, in the order presented:

The entity being claimed against alleges:

#### FIRST. – DOCUMENTARY EVIDENCE OF THE PURCHASE OF THE DATABASE

By virtue of what this Agency stated in its response to the Report issued by this party regarding the causes that motivated the initiation agreement of the sanctioning procedure, the following was indicated:

"In response to the allegations, we must emphasize, for the purpose of establishing the applicable legal framework and the legislation that justifies and regulates telephone commercial communications, that it is the entity being claimed against that states that '... The personal data of the claimant regarding their full name, address, and phone number, has been obtained from the database purchased from the company Infobel, whose tax details are KAPITAL SA, \*\*\*ADDRESS.1. This database was purchased in 2016, with the mentioned company providing a CD-ROM with an installable program that included a database with telephone numbers, addresses, and names of individuals and companies in Spain.' However, '... there is no invoice justifying the purchase of this program because it was destroyed.'

In this regard, this Agency indicates to us: 'However, it is important to note that, at no time has the entity being claimed against provided or submitted any document that proves that the data was obtained from a database purchased from the company Infobel.'

What this Agency has stated is not correct, as in the response to the information request issued on March 24, 2023, a photograph of the mentioned Infobel program is provided as Annex I; and in Annex II, the claimant's data in that program. The following is again submitted as evidence:

(Annex I – Photograph of the purchased program).

(Annex II – Image of the Infobel program with the client's data).

Moreover, this Agency indicates in various sections of the proposed resolution that there is no justification or documentary evidence regarding the purchase of said database, stating repeatedly by this party that, in accordance with the principle of limitation of the retention period established in point e) of Article 5 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data, there is no invoice justifying the purchase of this program because it was destroyed, as the 4-year statute of limitations provided for in Article 29.2, letter e) of Law 58/2003, of December 17, General Tax Law and 165. One of Law 37/1992, which imposes on entrepreneurs and professionals the obligation to retain invoices and supporting documents related to their tax obligations.

In response to the allegations, this Spanish Data Protection Agency must insist on the fact that, at no time has the entity being claimed against provided or submitted any document that proves that the data was obtained from a database purchased from the company Infobel.

The only thing provided by NATURGESTY are two photographs corresponding to a CD-ROM and a cover on which the word "Infobel" appears, which in no case allows for the consideration or deduction that the personal data of the claimant was obtained from the company Infobel, whose tax details are KAPITAL SA, \*\*\*ADDRESS.1.

The entity being claimed against continues to say,

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## SECOND. – DETERMINATION OF THE APPLICABLE LAW

In the resolution proposal, this Agency establishes that the applicable legislation is Organic Law 15/1999, of December 13, on the Protection of Personal Data, as it was the legislation in force at the time of the purchase of the database. However, the commercial call (subject of this complaint) was not made until 2022, when the current Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), was already in force. Therefore, to determine whether the commercial call was made in accordance with legal provisions, this regulation must be consulted along with Law 11/2022, of June 28, General Telecommunications Law, in force at the time of the communication.

In consideration of the above, Article 23 of the LOPDGDD regarding advertising exclusion systems states:

“1. The processing of personal data aimed at preventing the sending of commercial communications to those who have expressed their refusal or opposition to receiving them shall be lawful.”

In the case at hand, the Robinson List was reviewed, and the complainant was not on it, therefore, they did not express at any time their refusal or opposition to receiving such commercial calls.

The article continues: “4. Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their actions, excluding from processing the data of those affected who have expressed their opposition or refusal to it. For these purposes, consulting the exclusion systems included in the list published by the competent control authority shall be sufficient to consider the previous obligation fulfilled.”

As can be seen in Annexes I and II submitted in the Allegations at the beginning of the sanctioning procedure dated October 13, 2023, the complainant was not registered in the advertising exclusion systems. They are again provided as evidence:

(Annex III – Screenshot of the Axesor page where the client's data appears).

(Annex IV – Screenshot of the Axesor page showing that they were NOT registered in the advertising exclusion system).

In response to what was stated by the defendant entity and despite the fact that, at no time, it has been proven by the same that the personal data of the complainant party was obtained from the company Infobel, there is a statement from the defendant entity in the file, as follows:

“The personal data of the complainant relating to their full name, address, and phone number have been obtained from the database purchased from the company Infobel, whose tax details are KAPITAL SA, \*\*\*ADDRESS.1.

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This database was purchased in 2016, with the aforementioned company providing a CD-ROM with an installable program that included a database with telephone numbers, addresses, and names of individuals and companies in Spain,” as stated in the second proven fact.

Consequently, since the alleged purchase of the database took place in 2016, the Organic Law 15/1999, of December 13, on the Protection of Personal Data was applicable, whose article 3 j) established that:

“For the purposes of this Organic Law, the following shall be understood as:

j) Publicly accessible sources: those files whose consultation can be carried out by any person, not hindered by a restrictive norm or without any further requirement than, where applicable, the payment of a consideration.

The following are considered public access sources: the promotional census, telephone directories as provided for by their specific regulations, and lists of individuals belonging to professional groups that

contain only the data of name, title, profession, activity, academic degree, address, and indication of their membership in the group. Likewise, official journals and bulletins and media are also considered public access sources...”.

For its part, article 28 of the same legal text, under the heading “Data included in publicly accessible sources,” established that:

“1. The personal data appearing in the promotional census, or the lists of individuals belonging to professional groups referred to in article 3, j) of this Law shall be limited to what is strictly necessary to fulfill the purpose for which each list is intended. The inclusion of additional data by the entities responsible for maintaining such sources will require the consent of the interested party, which may be revoked at any time.

2. The interested parties shall have the right to have the entity responsible for maintaining the lists of professional associations indicate free of charge that their personal data cannot be used for advertising or commercial prospecting purposes. The interested parties shall have the right to demand free of charge the exclusion of all their personal data that appears in the promotional census by the entities responsible for maintaining such sources.

The attention to the request for exclusion of unnecessary information or for the inclusion of the objection to the use of data for advertising or distance selling purposes must be carried out within ten days regarding the information that is made through consultation or telematic communication and in the next edition of the list, regardless of the medium in which it is published.

3. Public access sources that are published in the form of a book or any other physical medium will lose their status as accessible sources with the new edition that is published.

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In the event that a copy of the list is obtained electronically via telematics, it will lose its status as a publicly accessible source within one year from the moment of its acquisition.

4. The data appearing in telecommunications service directories available to the public will be governed by their specific regulations.” (the underlining is from this agency).

Consequently, and having passed more than a year since the purchase of said database, it has lost its status as a publicly accessible source, making a legitimizing cause necessary for the processing of such personal data.

Article 7 of Royal Decree 1720/2007, of December 21, which approves the Regulation for the development of Organic Law 15/1999, of December 13, on the protection of personal data, established:

“1. For the purposes of article 3, paragraph j) of Organic Law 15/1999, it shall be understood that only the following will have the character of publicly accessible sources:

b) The directories of electronic communications services, in the terms provided for by their specific regulations.

The specific regulations governing the directories of electronic communications services, at the time of the alleged purchase of the database in 2016, was Law 9/2014, of May 9, General Telecommunications, which, in Article 48 “Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories,” in its third section establishes that:

“3. Regarding the protection of personal data and privacy in relation to subscriber directories, end users of electronic communications services shall have the following rights:

a) To appear in subscriber directories.

b) To be informed free of charge of the inclusion of their data in the directories, as well as the purpose thereof, prior to such inclusion.

c) Not to appear in the directories or to request the omission of some of their data, to the extent that such data is relevant to the purpose of the directory stipulated by its provider...”.

Therefore, it must be reiterated that the claiming party should have been informed of their inclusion in said database, as well as the purpose of it, a circumstance that has not been accredited at any time by NATURGESTY.

### THIRD. – NORMATIVE PREVALENCE

As already stated in the Allegations to the initiation agreement of the sanctioning procedure dated October 13, 2023, the applicable legislation to this matter is the aforementioned Law 11/2002, General Telecommunications.

In said regulation, it is established in its article 48.1, letter b):

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“1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communication services shall have the following rights:

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right.”

In light of the above, the Legal Department of the AEPD in its report N/REF: 0052/2023 regarding the Draft Circular on the application of Article 66.1.b) of Law 11/2022, of June 28, General Telecommunications Law, states the following:

“In this regard, in Report 40/2023, after analyzing the regulatory evolution on this matter and the situation existing prior to the entry into force of the current LGTel, the following was noted:

‘Consequently, considering the cited regulations and the prevalence of the LGTel as a special norm, it was lawful to make calls for commercial communication purposes as long as the end user had not exercised their right of opposition, recognizing the exercise of that right generally through inclusion in an advertising exclusion file, which must be consulted by those intending to make such communications unless the affected party had given their consent.’”

That is to say, the AEPD itself acknowledges in this Legal Report that the General Telecommunications Law has prevalence and priority of application as a special norm, indicating that the call for commercial purposes could be made without the claimant's consent as long as they had not exercised their right of opposition through inclusion in an advertising exclusion file, which did not occur. As previously stated in the initial allegations, the report continues by saying:

“Previously, one of the main differences arising from the new legal regime established by the LGTel of 2022 had been pointed out: However, unlike the regime contained in Article 48.1.b) of the General Telecommunications Law, which directly legitimized the making of calls without prejudice to the right of opposition, the referral to the bases of Article 6.1.f) requires that, beforehand, the responsible party has carried out the corresponding balancing, in the terms indicated in this report.

As can be seen, this is a substantial change, as it has shifted from a system in which the existence of a legitimate interest of the responsible party was presumed to authorize the making of calls, recognizing exclusively a right of opposition, to a new system in which the right of the affected parties to not receive unwanted calls for commercial communication purposes is recognized, unless there is prior consent from the user themselves to receive such commercial communications or unless the responsible party demonstrates the existence of a legitimate interest that does not prevail over the interests or fundamental rights and freedoms of the affected party. Thus, the direct recognition of the right to not receive unwanted calls entails the obligation of

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those responsible for not carrying them out unless they prove the existence of one of the two exceptions contemplated in the aforementioned provision, which, given their exceptional nature, must be subject to restrictive interpretation.”

The Agency's Circular establishes, therefore, several important details:

1. That the General Telecommunications Law has preferential applicability over the LOPDGDD (although both are in harmony).

2. That the call could only not have been made if the complainant had been in the advertising exclusion system, a proven circumstance that did not occur.

Furthermore, in the aforementioned Report, the AEPD acknowledges that the commercial call could be made by claiming a legitimate interest of the responsible party, in accordance with the provisions of Article 6.1.f) of the GDPR. This can be appreciated in the report as follows:

“For the realization of this analysis, it is necessary to start from the purpose pursued by the legislator with the reform, which has involved a substantial change in the legal regime applicable to unwanted calls for commercial purposes, moving from the recognition of a right of opposition of users, which implied recognizing an interest of the responsible parties to make such calls as long as such opposition had not been exercised, to recognizing a right of users not to receive such calls, which entails the obligation of the responsible parties not to make them unless some of the exceptions contemplated in the regulation occur.” “As can be observed, this is a substantial change, since it has moved from a system in which the existence of a legitimate interest of the responsible party was presumed, which empowered them to make the calls, recognizing exclusively a right of opposition, to a new system in which the right of the affected parties not to receive unwanted calls for commercial communication purposes is recognized, unless there is prior consent from the user to receive such commercial communications or unless the responsible party proves the existence of a legitimate interest that does not prevail over the interests or fundamental rights and freedoms of the affected party.”

As can be appreciated, it is the AEPD itself that justifies and finds as a legal basis for legitimization to make the commercial call, the existence of a legitimate interest of the responsible party. Therefore, and based on what is provided in the sanction proposal report issued by this Agency:

“It should be noted that Infobel is a telephone directory published by KAPITAL SA that has authorization from the CNMC to prepare telephone directories, but the responsible parties must prove a basis for legitimization to process these personal data, which does not occur in the present case”; if there is a basis for legitimization, being the same a legitimate interest of the responsible party in accordance with the provisions of Article 6.1.f) of the GDPR.

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In response to the allegations, this Spanish Agency for Data Protection must insist on situating the applicable legal framework at the time of the alleged purchase of the database containing the claimant's data.

The alleged purchase of the database, according to the statement of the respondent, took place in 2016, making the Organic Law 15/1999, of December 13, on the Protection of Personal Data applicable, and the specific regulations governing electronic communications service guides at that time were the General Telecommunications Law 9/2014, of May 9, and not the mentioned General Telecommunications Law 11/2002.

In accordance with the regulations in force at that time, the respondent should have been informed of their inclusion in the database held by NATURGESTY, as well as the purpose of the same, and not base the processing of the claimant's personal data on the lack of opposition to receiving unwanted calls for commercial communication purposes, in accordance with the General Telecommunications Law 11/2022, of June 28.

### III

#### Unfulfilled Obligation

Article 4 of the GDPR, under the heading "Definitions," provides the following:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data



subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction.”

7) ‘data controller’ or ‘controller’: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law.”

In this regard, it must be noted that NATURGESTY is the data controller and, therefore, determines the purposes and means of the processing of personal data.

#### IV

Article 6 of the GDPR

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Article 6 of the GDPR establishes that,

“1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.”

In this case, it is noted that the claimant, after receiving a phone call from a company identifying itself as Naturgy, was informed that they were required to carry out a mandatory gas inspection, appearing at their home on June 27, 2022, to carry it out.

NATURGESTY states that “... The personal data of the claimant relating to their full name, address, and phone number, have been obtained from the database purchased from the company Infobel, whose tax details are KAPITAL SA, \*\*\*ADDRESS.1. This database was purchased in 2016, with the mentioned company providing a CD-ROM with an installable program that included a database with phone numbers, addresses, and names of individuals and companies in Spain.” While, “... there is no invoice justifying the purchase of this program because it was destroyed...”

It should be noted that Infobel is a telephone directory published by KAPITAL SA that has authorization from the CNMC to produce telephone directories, but the controllers must demonstrate a basis for legitimacy to process these personal data, which does not occur in this case.

For the reasons stated, it is considered that the known facts constitute an infringement, attributable to NATURGESTY, for violation of Article 6.1 of the GDPR, since the processing of data carried out has been done without a legitimizing cause.

V

Classification of the infringement of Article 6.1 of the GDPR

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The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for legitimacy established in Article 6 of Regulation (EU) 2016/679. (...)”

VI

Sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is appropriate to graduate the sanction to be imposed in accordance with the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

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b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard. [Judgment of the National Court of 17/10/2007 (rec. 63/2006)]

As aggravating factors:

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b) The connection of the infringer's activity with the processing of personal data.

NATURGESTY, in exercising its commercial activity and provision of services, must have the consent and legitimacy in the processing of its clients' personal data.

Consequently, and for the purpose of complying with the legally established requirements, the exercise

of such activity necessarily implies knowledge and application of the current regulations on personal data protection.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 6.1 of the GDPR, allows for the imposition of a sanction of €10,000 (TEN THOUSAND EUROS).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on NATURGESTYGAS, S.L., with NIF B88390661, for an infringement of Article 6.1 of the GDPR, typified in Article 83.5 of the GDPR, a fine of €10,000 (TEN THOUSAND EUROS).

SECOND: TO NOTIFY this resolution to NATURGESTYGAS, S.L.

THIRD: This resolution shall be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day

following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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